

**APPENDIX 'D' JAMAICA CONSTABULARY REVISED GRIEVANCE PROCEDURE AND POLICY
TO FORCE ORDERS NO. 3657 DATED 2017-07-06**

- I. Non-selection to participate in developmental/advancement course even though the employee(s) have the skills and competence in the field/discipline;
- II. Failure to receive a non-competitive promotion although having successfully matriculated and no explanation or results offered;
- III. An action which terminates a temporary promotion within the maximum period of six months (Staff Orders) and returns the employee to the position from which the employee was temporarily promoted;
- IV. An action that results in the failure of an employee to be granted an incremental increase or amount agreed upon under the Secondary Employment Programme;
- V. Failure to adopt an employee suggestion or invention that when employed would have resulted in benefits to the organisation/formation/department;
- VI. Failure to recommend an employee for meritorious or distinguished performance on a specific task/assignment;
- VII. Transfer;
- VIII. Discriminatory actions toward an employee as a result of gender, age, sexual orientation, physical handicap or medical condition;
- IX. Concerns in respect of assessment on confidential report ;
- X. Leave;
- XI. Political influence;
- XII. Lack of equipment and stationary;
- XIII. Any other matter that affects harmonious relations within the Force.

9. Informal Grievance Procedure

- 9.1 an employee may present a grievance concerning a continuing practice or condition at any time. However, where such continuous actions are culminated in one event, this grievable issue/occurrence MUST be submitted within 7 days of the occurrence.
- 9.2 The grievance should be in the form of a written report or statement. The employee/member must inform the immediate supervisor that an informal approach is desired.
- 9.3 The Supervisor/manager if he/she is not the respondent will conduct an enquiry into the allegations with full considerations to the requested remedy. The grievant should be supplied with a written response within 10 working days acknowledging receipt of the informal grievance procedure
- 9.4 On completion of treating with the grievance, the Divisional Officer shall submit a written report containing the results of the informal grievance procedure. Same should be recorded in the Grievance Register at the Divisional Headquarters
- 9.5 Where the report is submitted to the chaplaincy unit a receipt shall be forwarded to the grievant acknowledging receipt of report. Same shall be forwarded to the Area Commander for investigations
- 9.6 The Area Commander on receipt of this report shall forward same with his comments to the Deputy Commissioner in charge Administration and also to the Director of Human Resource department.
- 9.7 If the aggrieved member is dissatisfied with the outcome of the hearing he/she shall submit a request for the formal grievance procedure
- 9.8 The aggrieved member/s shall have the right to an observer (representative from the staff associations, attorney)
- 9.9 It is encouraged that an aggrieved member/s should use the informal procedure prior to seeking resolution under the formal procedure

10. Formal Grievance Procedures

- 10.1 If the grievance is not resolved to the satisfaction of the aggrieved member at the informal stage, then the member may submit through the Divisional Commander , where the Divisional commander is not the respondent, a written report stating his/her dissatisfaction with the outcome and the occurrences that led to the initial grievance report, and the remedy sought.

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- 10.2 Where the Commanding Officer is the respondent then the grievance report should be addressed to the Assistant Commissioner in charge Area/Branch under Confidential Heading.
- 10.3 The Deputy Commissioner of Police in charge Administration on receipt of the formal report may direct the matter to the Grievance Board
- 10.4 At this stage the deciding official can overrule the determination made by the manager at the informal stage.
- 10.5 The Chairman and the Board will determine the jurisdiction of the grievance report (disciplinary etc)
- 10.6 The decision of the Board will be submitted in writing to the Commissioner and communicated to the grievant, respondent, the representative or attorney and Divisional Commander
- 10.7 The aggrieved member shall have the right to an observer (representative from the staff associations, attorney)
- 10.8 If the aggrieved member is dissatisfied with the outcome of the hearing he/she shall submit a request to appeal the results/decision of the formal grievance procedure
- 10.9 A monthly return of settled and unsettled grievances shall be submitted by Officers in charge Divisions and Branches through the Assistant Commissioner in charge of their portfolios to reach the Deputy Commissioner in charge Administration by the 7th day of each succeeding month

11. Pre-Hearing Conference

The purpose of the pre-hearing conference is to discuss procedures that will be followed in hearing the grievance. It also allows the opportunity to review the grievance to resolve any jurisdictional issues and to handle any questions of potential conflict of interest that may have been identified and remained unresolved.

During this process the Chair should first address any potential conflict of interest issues and where there are none then the chair should enquire if the parties are satisfied with the constitution of the Board.

11 Appeal Process

- A. The grievance process is a sensitive area in any organisation as it involves personnel/workers with different perceptions. The Force is no exception. It shall be the duty and responsibility of the officers in charge of Divisions and Branches to resolve a grievance in an atmosphere of fairness and justice, thus obviating the need for an appeal.
- B. The following procedure shall be followed when appealing against decisions made in a grievance:
 - I. If after being notified in writing the aggrieved party is not satisfied with the outcome of the hearing, he/she shall have the right to appeal
 - II. The aggrieved party shall submit the grounds of appeal against the decision/recommendations of the Grievance Board within fourteen days to his/her immediate sub-officer or supervisor in a sealed envelope of his/her receipt of the decision/recommendation. This envelope shall be addressed to the Deputy Commissioner of Police in charge Administration with a cover letter
 - III. The Sub-officer or Supervisor on receipt of this appeal shall record same in the correspondence register and forward same immediately by hand to the Officer with seals undisturbed
 - IV. The Officer in charge Division/Branch to which the grievant is assigned, on receipt of the Appeal shall forward same to the Area Officer with seals undisturbed
 - V. The Area Officer on receipt of the appeal shall forward same to the Deputy Commissioner in charge Administration.
 - VI. The Deputy Commissioner in charge Administration on receipt of the appeal shall:
 - a. review the facts of the grievance and the report of the Area Officer;

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- b. Examine the grounds of appeal and attach his comments and forward same to the Commissioner of Police for his ruling. The Commissioner is the final authority for appeals for members below the rank of Inspector;
- c. Where the grievant is at or above the rank of Inspector and is dissatisfied with the outcome of the grievance procedure, he shall have the right to appeal through the proper channel for an interview with the Commissioner;
- d. Where grievant is at or above the rank of Inspector and he or she is still dissatisfied with the results of the appeal/interview with the Commissioner, he/she may appeal through the proper channel to the Police Service Commission which shall be the final authority for such appeal

12. Time Limits in Processing Grievance

12.1 Every reasonable effort shall be made to issue a final decision on a grievance within 90 days from the date of initiation by an employee. Considerations must be given to the responsibilities of the members of the National Grievance Board especially in fulfilling matters that are submitted into the formal stage. No efforts should be spared in offering a full and honest explanation to the grievant why the relief he/she seeks cannot be received.

12.2 When the postal system is used, the post mark date will be used to determine the date of initiation and ultimately the grievant's responsibilities to the timeliness of the process. Where there is no postal date affixed to the report the date of receipt becomes the official date to determine the timeliness of the grievant's application. The date of receipt for a grievance will be recorded at each step.

13. Cancellation of Grievance

A grievance will be cancelled;

- a) On the written request of the grievant
 - b) The full requested remedy has been granted whether or not the grievant submits a written request for its withdrawal
 - c) On the termination of the grievant's employment, unless the relief sought can be granted after termination of the grievant's employment
 - d) Failure to submit grievance within the stipulated time from the date of occurrence
 - e) The grievant is not personally affected
- 13.1** When a grievance is cancelled, all parties must be notified promptly and in writing and the given reason(s) for the cancellation. The notice shall inform the grievant of his/her right and the mailing address to which the request for review may be submitted.
- 13.2** When a grievance is rejected, the grievant may request a review of the determination from the Deputy Commissioner in charge administration who shall forward same to the commissioner with the determination. The grievant shall submit the request for review within five days of receipt of the rejection notice. The decision of the Commissioner shall be the final on the rejection decision.

14. Records

To ensure confidentiality and maintain proper control of grievance records the following shall be done:

Grievance file for each Division /Branch shall be established in the administrative office of the deputy Commissioner in charge Administration

- a) On each file shall be clearly marked the name of the division/Branch for easy retrieval
- b) In each file the monthly Divisional returns received shall be enclosed
- c) The register at the Divisional headquarters shall also form a part of the records keeping process
- d) The Sub-officer with responsibility in the office of the Deputy Commissioner in charge Administration shall be responsible for the safe keeping of these files and their contents shall be classified

15. Annual Analysis of Grievance

A good grievance procedure that is properly used will emphasise what is right and not who is right. In Police management it is a valuable method to discover internal problems. It shall be necessary therefore for an annual analysis to be taken thus ensuring harmonious relations within the Force.

It shall be the responsibility of the Grievance Board to meet after the 31st of March each year for the following purposes:

- To note the trend and analyse filed grievances;

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- Identify problems and make recommendations to the Commissioner for administrative changes where necessary.

The Commissioner with this information in hand shall be in a better position to appreciate the problems identified and act accordingly to minimise or eliminate the cause of these grievances.